A Woman of Principle

ACCOMPLISHMENT

Among the few judges to have reached the top court from trial court, she has shown unwavering commitment to both constitutional and Gandhian principles



Justice Bela M. Trivedi, *63*
Judge, Supreme Court of India

THE FIRST WOMAN JUDGE FROM GUJARAT to be elevated to the Supreme Court, Justice Bela Madhurya Trivedi has made her mark as a fearless judge committed to the basic principles enshrined in the Constitution. A follower of Gandhian principles who often quotes Mahatma Gandhi during proceedings, she also lays stress on ethics and etiquette in the conduct of court procedure.

Her concern for propriety was evident when, as a Supreme Court judge, she in December last year recused herself from hearing petitions challenging a Gujarat government decision to prematurely release 11 men sentenced to life imprisonment in the Bilkis Bano gang-rape case dating back to the 2002 communal riots. As a native of the state, she did not want to be the adjudicator in the case.

Born on June 10, 1960, in Gujarat's Patan, Justice Trivedi graduated in commerce and law from M.S. University in Vadodara before getting enrolled as a lawyer in 1983. Twelve years later, in July 1995, she was appointed as a judge in the City Civil and Sessions Court in Ahmedabad, where her father was also serving as a judge.

It was in 2011 that Justice Trivedi was first appointed as an additional judge of Gujarat High Court before being transferred to Rajasthan, where she became a permanent judge. In 2016, she was repatriated to Gujarat, where she stayed till being elevated to the Supreme Court in August 2021—among a few judges who have reached the top court from trial court.

Justice Trivedi was part of the three-judge bench that in November 2021 set aside the Bombay HC's controversial judgment that had held 'skin-to-skin' contact necessary to constitute sexual assault under the Protection of Children from Sexual Offences Act, 2012. A year later, she was also part of the five-judge constitution bench that upheld the validity of the 103rd Constitutional Amendment that introduced 10 per cent reservation for economically weaker sections.

Justice Trivedi's rulings from her stint in the Gujarat High Court also show her commitment to both constitutional and Gandhian principles. During the pandemic, for instance, she was part of a two-judge bench that dismissed a petition seeking a declaration that the Covid-19 guidelines on dead body management violated the traditional Parsi last rites. Even the fundamental rights to profess, practise or propagate religion and manage religious affairs are subject to public order, morality and health, observed the ruling. ■

-Kaushik Deka

GANDHIAN ETHOS

"Animals, like human beings, have the capability of comprehending physical and mental pain"

–while rejecting the bail plea of a habitual offender arrested for animal cruelty in Gujarat

FREE AND FAIR

As a Gujarat High Court judge in March 2020, Justice Trivedi was unwavering in her refusal to grant interim bail to the self-styled godman Asaram Bapu, who was on trial in a rape case